

ADDENDUM NO. 3

Issued 18 November 2026
Tender NUPA/ISTP/2026/014

Wadi Sirhan Independent Sewage Treatment Plant

SYNTHETIC: not tender content. Test material for blind rehearsal 08; not issued by any authority.

This Addendum replaces Volume I Clause 8.9 so that a member of a Bidder incorporated outside the Kingdom must submit either its investment licence or a Certificate of Investment Registration issued within the periods in Table 8-1 (issued in Arabic), subject to a limited exception, requires a Bidder relying on a Certificate to notify the Authority of its applications, failing which the Proposal will be rejected, inserts a new Volume II Clause 4.6 on the treated effluent storage reservoir, extends the Scheduled PCOD in Volume V Clause 12.1 to forty-two (42) months, reduces the unpaid sum that constitutes an Authority Event of Default under Volume V Clause 39.4 to SAR 8,000,000, and responds to clarification requests 15 to 20.

This Addendum forms part of the RFP Documents and takes precedence in accordance with Volume I Clause 3.2. Bidders shall acknowledge receipt in Form 4-A. All other terms of the RFP Documents remain unchanged.

1. RECITALS

- 1.1 This Addendum is issued under Volume I Clause 5.3 and takes precedence over Addenda Nos. 1 and 2 in accordance with Volume I Clause 3.2.
- 1.2 A reference in this Addendum to a Clause, Table or Form is to that Clause, Table or Form as amended by Addenda Nos. 1 and 2, unless otherwise stated.
- 1.3 Clarification requests 15 to 19 were received before the time stated in Volume I Clause 5.2.

2. INVESTMENT REGISTRATION OF FOREIGN MEMBERS

- 2.1 Volume I Clause 8.9 is deleted and replaced by the following:

'8.9 Each member of the Bidder that is incorporated outside the Kingdom shall submit with Envelope A either (a) a copy of its current investment licence or (b) a Certificate of Investment Registration issued by the Northern Region Investment Services Office (the Office) in accordance with Table 8-1. A Proposal that does not include the evidence required by this Clause for each such member shall be rejected.'

- 2.2 Table 8-1 is reproduced at Appendix A to this Addendum as issued by the Office and forms part of Volume I. Table 8-1 is issued in the Arabic language. The Arabic text governs. The English translation at Appendix B is provided for convenience only.
- 2.3 Applications for a Certificate of Investment Registration shall be made by the member to the Office. The Office has undertaken to the Authority to issue a Certificate within the issue period stated in Table 8-1 for the class of the member, counted in accordance with the Notes to Table 8-1.
- 2.4 Section 2.1 does not apply to a member of the Bidder that is to hold not more than ten per cent (10%) of the shares in the Project Company and that has no role in the design, construction or operation of the Facility. Such a member shall instead submit with Envelope A the signed undertaking described in Volume I Clause 8.9 as issued.
- 2.5 A Bidder that relies on paragraph (b) of Volume I Clause 8.9 for any member shall notify the Authority through the Portal, not later than three (3) Working Days before the Proposal Due Date, of the name of that member and the reference number of its application to the Office.
- 2.6 The periods in Volume I Clause 12.2 for Commercial Close and Financial Close are unchanged.

3. TREATED EFFLUENT STORAGE AND SCHEDULED PCOD

3.1 The following new Clause 4.6 is inserted in Volume II after Clause 4.5:

‘4.6 The treated effluent storage reservoir referred to in Clause 1.2 shall provide a working volume of not less than six (6) hours of the design flow and shall be divided into not fewer than two (2) compartments, each capable of being isolated for cleaning while the other remains in service.’

3.2 The insertion of Clause 4.6 does not renumber any other Clause of Volume II.

3.3 In Volume V Clause 12.1, the period of thirty-six (36) months is increased by six (6) months.

3.4 Bidders shall reflect Sections 3.1 and 3.3 in the process design and the construction programme submitted in the Technical Proposal and in the Financial Model.

4. AUTHORITY EVENT OF DEFAULT

4.1 The amount stated in Volume V Clause 39.4 is reduced by forty per cent (40%).

4.2 The period of sixty (60) days in Volume V Clause 39.4 is unchanged.

5. RESPONSES TO CLARIFICATION REQUESTS 15 TO 19

No	Bidder question	Authority response
15	May the undertaking required by Volume I Clause 8.9 be given by the lead member on behalf of a foreign consortium member?	No. Volume I Clause 8.9 is replaced by Section 2.1 of this Addendum and an undertaking is no longer accepted, save from a member described in Section 2.4, which shall give its own undertaking.
16	Will the Authority assist foreign consortium members that have not obtained an investment licence before the Proposal Due Date?	Section 2 of this Addendum applies. The Office has confirmed to the Authority that, for an application lodged not later than Sunday 22 November 2026, the issue period in row 2 of Table 8-1 is reduced by two (2) Working Days. The other issue periods in Table 8-1 are unchanged.
17	Will the arbitration under Volume V Clause 44.2 be conducted in English?	Yes. Volume V Clause 44.2 applies.
18	Volume II Clause 1.2 includes a treated effluent storage reservoir, but no capacity is stated. What capacity is required?	See new Volume II Clause 4.6, inserted by Section 3.1 of this Addendum.
19	Will the Authority reconsider the threshold for an Authority Event of Default in Volume V Clause 39.4?	Yes. See Section 4 of this Addendum.

APPENDIX A — TABLE 8-1 (ARABIC)

The following letter and table are reproduced as issued by the Northern Region Investment Services Office under its reference No. 228/2026 dated 16 November 2026. The Arabic text governs in accordance with Section 2.2 of this Addendum.

Northern Region Investment Services Office

مكتب خدمات الاستثمار بالمنطقة الشمالية

التاريخ: ١٦ نوفمبر ٢٠٢٦م

الرقم: ٢٢٨/٢٠٢٦

إلى: الهيئة الشمالية للمشتريات المرفقية

الموضوع: تسجيل استثمار أعضاء الائتلافات المؤسسين خارج المملكة
مناقصة رقم: NUPA/ISTP/2026/014 (محطة معالجة مياه الصرف الصحي المستقلة بوادي السرحان)

جدول ٨-١: مدد إصدار شهادة تسجيل الاستثمار

يُصدر المكتب شهادة تسجيل الاستثمار للعضو المؤسس خارج المملكة خلال المدة المبينة أدناه لفنته:

م	فئة العضو	المستندات المطلوبة مع الطلب	مدة الإصدار (أيام عمل)
١	شركة مؤسسة في إحدى دول مجلس التعاون الخليجي	السجل التجاري مصدقاً	٣
٢	شركة مؤسسة خارج دول مجلس التعاون الخليجي	السجل التجاري والقوائم المالية المدققة لآخر سنة مالية، مصدقة	٥
٣	فرع مسجل في المملكة لشركة أجنبية	شهادة تسجيل الفرع وقرار مجلس إدارة الشركة الأم بتفويض الفرع	٨

ملاحظات:

١. تُحسب مدة الإصدار بأيام العمل اعتباراً من يوم العمل التالي ليوم استلام الطلب المكتمل.
٢. تكون الشهادة سارية لمدة تسعين (٩٠) يوماً من تاريخ إصدارها.
٣. تُقدّم الطلبات إلكترونياً عبر بوابة المكتب فقط، ولا يُعدّ الطلب مكتملاً إلا بإرفاق جميع المستندات المبينة أعلاه.

مدير مكتب خدمات الاستثمار بالمنطقة الشمالية

FICTIONAL DOCUMENT - Lamar Holding internal assessment pack - not a real tender. SYNTHETIC: not tender content.

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APPENDIX B — ENGLISH TRANSLATION OF TABLE 8-1

This translation is provided for convenience only. The Arabic text of Table 8-1 at Appendix A governs. Northern Region Investment Services Office, reference No. 228/2026 dated 16 November 2026, to the Northern Utilities Procurement Authority. Subject: investment registration of consortium members incorporated outside the Kingdom. Tender No. NUPA/ISTP/2026/014 (Wadi Sirhan Independent Sewage Treatment Plant).

Table 8-1 — Issue periods for Certificates of Investment Registration

The Office issues a Certificate of Investment Registration to a member incorporated outside the Kingdom within the period stated below for its class.

No	Class of member	Documents required with the application	Issue period (Working Days)
1	Company incorporated in a GCC state	Certified commercial registration	3
2	Company incorporated outside the GCC states	Commercial registration and audited financial statements for the last financial year, certified	3
3	Branch registered in the Kingdom of a foreign company	Branch registration certificate and parent company board resolution authorising the branch	8

Notes to Table 8-1:

- (1) The issue period is counted in Working Days from the Working Day following the day of receipt of a complete application.
- (2) A Certificate is valid for ninety (90) days from its date of issue.
- (3) Applications are made electronically through the Office's portal only. An application is complete only when all the documents listed above are attached.

Signed: Director, Northern Region Investment Services Office (signature and stamp).